

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201709516	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/03/2017 6:00 PM, Sunday, 11/05/2017 12:00 AM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 5/3/2019	Precinct: 83		
Date/Time CV Reported Wed, 11/08/2017 9:22 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/16/2017 11:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 John Bartek	05694	930321	083 DET
2. DT2 Patrick Smith	05453	931998	083 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Patrick Smith	Abuse: Detective Patrick Smith entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 John Bartek	Abuse: Detective John Bartek entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . DT2 Patrick Smith	Discourtesy: Detective Patrick Smith spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . DT2 Patrick Smith	Discourtesy: Detective Patrick Smith spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . DT2 Patrick Smith	Abuse: Detective Patrick Smith threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . DT2 Patrick Smith	Abuse: Detective Patrick Smith threatened § 87(2)(b) with the use of force.	F . Unsubstantiated

Case Summary

On November 8, 2017, § 87(2)(b) filed this complaint on his and § 87(2)(b)'s behalf with IAB, which was received at the CCRB on November 16, 2018, under log number 2017-44931.

On November 3, 2017, at 6:00 p.m., Detective Patrick Smith and Detective John Bartek, both of the 83rd Precinct Detective Squad, went to § 87(2)(b) in Brooklyn to apprehend § 87(2)(b) the perpetrator listed in complaint report number § 87(2)(b). Upon knocking on the door, § 87(2)(b) opened the door and Det. Smith asked him multiple times if “§ 87(2)(b) identified by the investigation as § 87(2)(b) § 87(2)(b) was at the location. § 87(2)(b) said he was not and invited Det. Smith and Det. Bartek inside to look for him (**Allegations A and B: Abuse of authority – Entry of Premises, § 87(2)(g)**

After entering, § 87(2)(b) sat on the sofa in the living room and Det. Smith continued to ask § 87(2)(b) about § 87(2)(b) § 87(2)(b). When § 87(2)(b) attempted to speak, Det. Smith allegedly told him to “shut the fuck up” (**Allegation C: Discourtesy – Word, § 87(2)(g)** § 87(2)(b) exited the bathroom and sat in the living room.

Det. Smith then allegedly told § 87(2)(b) and § 87(2)(b) that he would be returning to the location that evening, and that if they did not have additional information on § 87(2)(b) § 87(2)(b) he would “kick [their] asses” (also **Allegation C : Discourtesy – Word, § 87(2)(g)** **(Allegation D: Discourtesy – Word, § 87(2)(g)** and **(Allegations E and F: Abuse of Authority – Threat of Force, § 87(2)(g)** The detectives then left the location.

Neither § 87(2)(b) nor § 87(2)(b) were arrested or issued summonses in relation to the incident under investigation.

There was no video evidence obtained in relation to this investigation.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Patrick Smith entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Detective John Bartek entered § 87(2)(b) in Brooklyn.

It is undisputed that on October 29, 2017, a complaint report, complaint report # § 87(2)(b), was filed against a § 87(2)(b) § 87(2)(b) and that § 87(2)(b) § 87(2)(b) address on the complaint report was § 87(2)(b) in Brooklyn (**Board Review 01**).

During his CCRB statement, § 87(2)(b) stated that after he opened the door for Det. Smith and Det. Bartek and they informed him that they were at the location to look for § 87(2)(b) § 87(2)(b) he gave them permission to enter and look for § 87(2)(b) § 87(2)(b) to prove to them § 87(2)(b) § 87(2)(b) was not there (**Board Review 02**). While inside of § 87(2)(b) apartment, the officers stayed in the main family room and did not enter any other rooms.

§ 87(2)(b) did not cooperate with the investigation.

Det. Smith stated that § 87(2)(b) invited him and Det. Bartek into the apartment (**Board Review 03**).

Det. Bartek stated that either he or Det. Smith asked § 87(2)(b) if they could speak inside of the apartment so that the individuals may have a private conversation (**Board Review 04**).

On November 3, 2018, Det. Smith prepared a DD5 entry that noted he visited the location and that the case was still active (**Board Review 05**).

People v. Gonzalez, 39 N.Y.2d 122. Consent to enter/search, a relinquishment of constitutional protection under both Federal and State Constitutions against unjustified official intrusion, must be a free and unconstrained choice (**Board Review 06**).

§ 87(2)(g)

Allegation (C) Discourtesy: Detective Patrick Smith spoke discourteously to § 87(2)(b)

Allegation (D) Discourtesy: Detective Patrick Smith spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Patrick Smith threatened § 87(2)(b) **with the use of force.**

Allegation (F) Abuse of Authority: Detective Patrick Smith threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) stated that after he, Det. Smith, and Det. Bartek entered the apartment, he sat on the sofa in his living room and Det. Smith continued asking him questions while urging him not to lie. When he attempted to speak, Det. Smith told him to “shut the fuck up.”

After Det. Smith was done asking him questions and § 87(2)(b) entered the room, Det. Smith informed them that he would be returning to the location at 10:00 p.m. that evening, and that if they did not have additional information on § 87(2)(b) § 87(2)(b) he would “kick [their] asses.” The detectives did not return to the location that night (**Board Review 2**).

§ 87(2)(b) did not cooperate with the investigation

Det. Smith stated that he did not tell § 87(2)(b) to “shut the fuck up.” He did not recall telling § 87(2)(b) that he would return to the location that evening, but he did not tell § 87(2)(b) or § 87(2)(b) that if they did not have additional information when he returned he would kick their asses. He did not use profanity at any point. Det. Smith further stated that there was not any confrontation during his interaction with § 87(2)(b) and § 87(2)(b) and that there was no reason to use profanity at any point (**Board Review 03**).

Det. Bartek’s statement was consistent with Det. Smith (**Board Review 04**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 07**).
- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in four allegations (**Board Review 08**):

○ § 87(2)(b)

- § 87(2)(b) [REDACTED]
- Det. Smith has been a member of service for 15 years and has been a subject in nine CCRB complaints and 19 allegations, of which two were substantiated:
 - 200512451 involved substantiated allegations of a vehicle search and discourteous language against Det. Smith. The Board recommended charges and the NYPD imposed Instruction.
 - § 87(2)(g) [REDACTED].
- Det. Bartek has been a member of service for 14 years and has been a subject in nine CCRB complaints and 25 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of May 7, 2018, the notice of claim inquiry with New York City Office of the Comptroller was still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

■ [REDACTED]

Squad No.: 12

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
---------------	--------------------	-----------------------------	---------------

Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
---------------	--------------------	-----------------------------	---------------

Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
-----------	--------------------	-----------------------------	---------------